

HOUSE BILL 2393

By Reneau

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Digital device" means electronic hardware used for instructional
purposes that can access, process, store, or transmit data;

(2) "Parent" means a parent or legal guardian of a student; and

(3) "Social media" means a form of interactive electronic communication
through an internet website or application by which a user creates a service-
specific identifying user profile to connect with other users of the internet website
or application for purposes of communicating and sharing information, ideas,
news, stories, opinions, images, videos, and other content.

(b) Except as provided in subsection (c), each LEA and public charter school
that serves students in any of the grades kindergarten through five (K-5) shall prohibit:

(1) Students in any of the grades kindergarten through five (K-5) from
accessing digital devices at school;

(2) Teachers and other employees of the LEA or public charter school
from using a digital device to provide instruction to students in any of the grades
kindergarten through five (K-5); and

(3) Teachers and other employees of the LEA or public charter school from administering an assessment to students in any of the grades kindergarten through five (K-5) in an electronic format.

(c) This section does not:

(1) Apply to public virtual schools;

(2) Supersede an LEA's or public charter school's obligation to comply with the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), or the Americans with Disabilities Act (42 U.S.C. § 12101 et seq.); or

(3) Apply to the administration of a universal screener adopted by the state board of education, the Tennessee universal screener, a dyslexia screening, a state-adopted benchmark assessment, or any other assessment required by the state.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.